

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
CHRISTOPHER ARROYO,

SUMMONS

Plaintiff,

-against-

CITY OF NEW YORK, P.O. KENNETH MACCALLA
and OFFICERS JOHN AND JAMES DOE, names being
fictitious and meant to designate additional offending
officers,

Plaintiff designates
BRONX County as the
place of trial
The basis of venue is:
CPLR 504 (3)

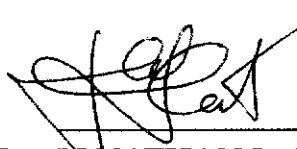
Defendants.
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

November 30, 2015


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

P.O. Kenneth Maccalla, Shield 028737 of the 52nd Precinct
1316 Webster Avenue Bronx, NY 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
CHRISTOPHER ARROYO,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. KENNETH MACCALLA
and OFFICER[S] JOHN AND JAMES DOE, names being
fictitious and meant to designate additional offending
officers,

Defendants.
-----X

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF CHRISTOPHER ARROYO

1. At the time of the commencement of this action, plaintiff CHRISTOPHER ARROYO was and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.

3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about November 4, 2014, P.O. KENNETH MACCALLA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

6. That on and about November 4, 2014, at approximately 12 P.M., P.O. KENNETH MACCALLA was working and acting within the scope of her employment as a Police Officer, and under the color of law.

7. That on and about November 4, 2014, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

8. That on and about November 4, 2014 at approximately 12 P.M. and thereafter, OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

9. At or near the place hereafter stated, and shortly prior to 12 P.M, the plaintiff was returning to his home from the market.

10. Shortly thereafter, and without warning, the above named officer detained plaintiff and began to search plaintiff in a invasive manner.

11. Although no contraband was recovered from plaintiff during the aforesaid search, plaintiff was handcuffed and arrested.

12. That on or about November 4, 2014 at approximately 12 P.M., near the front of 2522 University Avenue, Bronx, New York, the plaintiff CHRISTOPHER ARROYO was improperly arrested, and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest or confine CHRISTOPHER ARROYO.

13. That the defendants, their agents, servants and /or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

14. That the defendants, their agents, servants and /or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

15. That the defendants, their agents, servants and /or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without

any basis in law or fact, and plaintiff being aware of his unlawful confinement, thereby causing fright, shock, emotional distress and physical consequences.

16. That following his aforesaid arrest, plaintiff was transported to the 52nd Precinct, 1316 Webster Avenue, Bronx, New York, where he was strip searched, without his consent and without a reasonable articulable suspicion that he was secreting evidence underneath his clothing or within a bodily cavity, which constituted an assault, battery and gross invasion of the privacy of plaintiff.

17. That the aforesaid unlawful strip search was conducted by defendant P.O. KENNETH MACCALLA.

18. That the aforesaid unlawful strip search was conducted at the direction of defendant P.O. KENNETH MACCALLA.

19. That the aforesaid unlawful strip search was conducted at the direction of defendant P.O. KENNETH MACCALLA by another officer, knowable only by the defendants as the officer present and responsible for conducting a strip search of plaintiff at the time and place aforesaid.

20. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens and engaging in a policy and procedure of arresting persons upon pretext and/or the fabrication of evidence,

without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as the fulfillment of arrest quotas and the subjugate minority population without reprimand to the offending officers.

21. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein.

22. Said policy, practice and procedure of having arrest quotas, euphemistically known as productivity goals, which result in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeny, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department.

23. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas lead to a practice and procedure of, for instance, arresting persons for conduct that is not criminal.

23. Furthermore patterns of wrongful strip searches conducted without a reasonable articulable suspicion that the searched person was secreting evidence within a bodily cavity has occurred to such individuals such as, for instance, on October 27, 2007 JOSE ALICIA was improperly strip searched by officers of the 52nd Precinct; on June 30, 2009, and March 23, 2011 MARCO VASQUEZ was improperly strip searched by officers of the 52nd Precinct ;on January 14, 2010 SHAWN ADAMES was improperly strip searched by officers of the 52nd Precinct; on April 2, 2010 LILLIAN BROOKS as improperly strip searched by officers of the 52nd Precinct; on August 30, 2010 TRACY PIQUAN and LUIS POLANCO were improperly strip searched by officers of the 52nd Precinct; on May 7, 2011 LUIS FAMILIA and JEFFREY GUTIERREZ were improperly strip searched by officers of the 52nd Precinct; LUIS FAMILIA was again Improperly strip searched by

officers of the 52nd Precinct on October 8 2011; on January 25, 2012 LUCILLA RODRIGUEZ was improperly strip searched by officers of the 52nd Precinct; on September 13, 2013 JOSE ZANBRANA was improperly strip searched by officers of the 52nd Precinct; and is well evidenced by the May 14, 2004 letter by the Civilian Complaint Review Board with attachments to Police Commissioner Raymond Kelly, detailing the NYPD policy of illegal strip searched by their officers, a copy of which is available to the public at <http://www.nyc.gov/html/ccrb/downloads/pdf/stripsearchletter.pdf>, and as evidenced by the above and within individuals and countless others demonstrates that said practices continue unabated.

25. Moreover, patterns of such unlawful arrests of multiple persons who were erroneously and wrongfully arrested in Bronx County for the sale and/or possession of things they did not nor could reasonably be perceived as selling or possessing and when individualized reasonable or probable cause is lacking is demonstrated by, for instance, the arrests on similar wrongful charges of: Jonathan Bailey on August 3, 2011; Jose Reyes on December 14, 2011; Frank Aquino on August 22, 2012; Martin Delozier and Terrance Watson on October 12, 2012; Bryan Madera on April 8, 2013; Anthony Jones on June 5, 2013 , and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of their own tracking, tabulation

and statistical analysis of such arrests and the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OF NEW YORK agencies and departments for similar wrongful arrests.

26. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

27. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the named defendants, their supervisors and commanders and the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

28. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

29. That as a result of the foregoing, the plaintiff CHRISTOPHER ARROYO was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF CHRISTOPHER ARROYO

30. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 29 as though more fully set forth herein.

31. That on or about January 6, 2015, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, by presenting a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, and defendant conducted and plaintiff did appear and give testimony at a General Municipal Law §50h hearing on February 9,

2015, and this action was commenced on the claim within one year and ninety days after the happening of the event upon which the claim is based.

32. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

33. That on or about November 4, 2014 at approximately 12 P.M., near the front of 2522 University Avenue, Bronx, New York, the plaintiff CHRISTOPHER ARROYO was improperly arrested, and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest or confine CHRISTOPHER ARROYO.

34. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff of Due Process under Law.

35. That the defendants, their agents, servants and /or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

36. That the defendants, their agents, servants and /or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

37. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement, thereby causing fright, shock, emotional distress and physical consequences.

38. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

39. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

40. That as a result of the foregoing, the Plaintiff CHRISTOPHER ARROYO was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF CHRISTOPHER ARROYO

41. That plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 40 as though more fully set forth herein.

42. That during and following the aforementioned arrest, at the 52nd Precinct, 1316 Webster Avenue, Bronx, New York, the defendants, their agents, servants and/or employees employed and utilized unreasonable and invasive search methods and procedures upon the plaintiff, including a strip search, without individualized

articulable reasonable suspicion of the secreting of evidence which amounted to and was an assault and battery upon the plaintiff, and did further during said search, utilize excessive unnecessary unjustified force upon plaintiff.

43. That said invasive strip search did cause plaintiff fright, shock, emotional distress and physical consequences.

44. Further, that during the arrest of plaintiff, defendants placed handcuffs onto plaintiff in an overly tight and binding manner, causing discomfort, fright, shock, emotional distress and physical consequences.

45. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

46. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

47. That as a result of the foregoing, the plaintiff CHRISTOPHER ARROYO was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF CHRISTOPHER ARROYO

48. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 47 as though more fully set forth herein.

49. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

50. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper stopping, questioning, searching, detention and arrest of individuals, and in the utilization search procedures without reasonable articulable suspicion of the secreting of evidence and the proper utilization of force.

51. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiff CHRISTOPHER ARROYO was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be

prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

52. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second, Third and Fourth Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
November 30, 2015


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff
CHRISTOPHER ARROYO

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

P.O. Kenneth Maccalla, Shield 028737 of the 52nd Precinct
1316 Webster Avenue Bronx, NY 10467

PLAINTIFF'S VERIFICATION

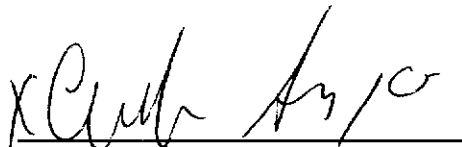
CHRISTOPHER ARROYO affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


CHRISTOPHER ARROYO